

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 7/24/2026 10:00 AM

#	Case Name	Tentative
1	Burke vs. City of Newport Beach 30-2024- 01436236-CU- PA-CJC	Motion for Leave to File Cross-Complaint Defendant City of Newport Beach's motion for leave to file a cross-complaint is GRANTED. There is no prejudice, as trial is several months away. Defendant is ORDERED to file the cross-complaint within 5 days. Clerk to give notice.
2	Phillips vs. Kirschbaum 30-2025- 01495763-CU- BT-CJC	Motion for Leave to File Amended Cross-Complaint Cross-Complainants April 2021 LLC and Stephen Vu's motion for leave to file a First Amended Cross-Complaint ("FAXC") is GRANTED.

		There is no prejudice, as trial has not yet been scheduled. Cross-complainants are ORDERED to file the FAXC within 5 days. Clerk to give notice.
3	Hauzer vs. Progressive Direct Insurance Company 30-2025-01487777-CU-BC-CJC	Motion to Deem Facts Admitted Off calendar. Reclassified to limited civil.
4	Providence Capital Funding, Inc. vs. Lozamira Inc. 30-2025-01484900-CU-BC-CJC	Motion to Stay Enforcement of Abstract of Judgment Defendants' Motion to Stay Enforcement of Abstract of Judgment is DENIED. Defendants Rosa Lozano, MA. E. Miramontes Gamboa, and Gerardo Lozano, Jr. are currently defaulted and cannot take affirmative action in the case until default is set aside. (See <i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 Cal.App.3d 381, 385.) Clerk to give notice.
5	Lugo vs. Cityside Networks, LLC 30-2025-01496289-CU-OE-CJC	Motion for Preliminary Approval of Class Action Settlement Off calendar. Transferred to complex civil.
6	State Bar of California vs. Bosse 30-2023-01339321-CU-PT-CJC	Motion to Terminate Jurisdiction Petitioner State Bar of California's unopposed Motion to Terminate the Court's Jurisdiction over Gregory Bosse's Law Practice is GRANTED. (See Bus. & Prof. Code, § 6190.6.) The State Bar is authorized to destroy any remaining client files and property in its possession that are not original wills or trust documents. The case is dismissed. Clerk to give notice.
7	Blumberg vs. Stroma Medical Corporation	Motion to Tax Costs or for Revising Calculation of Post-Judgment Interest Continued at parties' request.